

FILE #: 32632

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ALEXANDER PALMER,**AMENDED COMPLAINT**

Plaintiff(s),

Index: 151201/2021

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, EGA HALL HOUSING DEVELOPMENT
FUND CORPORATION, CORAZON MANAGEMENT
COMPANY, INC., MILLY OTERO, DEREK W. JUNG ,
and "JAMES" COOPER, First name fictitious, intended being
that of Police Officer,

Defendant(s).

-----X

Plaintiff, **ALEXANDER C. PALMER**, by his attorneys, **SUBIN ASSOCIATES LLP** as
and for a cause of action alleges, upon information and belief, as follows:Plaintiff, complaining of the defendants by his attorney upon information and belief, respectfully
allege(s):

1. At all times hereinafter mentioned, plaintiff ALEXANDER PALMER, was and is a
resident of the County of New York, City and State of New York.
2. That upon information and belief, THE CITY OF NEW YORK, (hereinafter
3. referred to as "The City"), is a municipal corporation organized and
existing under and by virtue of the laws of the State of New York.
4. That upon information and belief, defendant THE CITY OF NEW YORK,
operated, managed, maintained, supervised and controlled a police

department as part of and in conjunction with its municipal functions.

5. That at all times relevant hereto, defendants Police Officers DEREK W. JUNG , and “JAMES” COOPER, first name fictitious, intended being that of Police Officer, were employed as Police Officers in the Police Department of the City of New York.
6. That at all times relevant hereto, defendants Police Officers DEREK W. JUNG , first and “JAMES” COOPER, first name fictitious, intended being that of Police Officer, were, upon information and belief, assigned to the 30th Precinct, located in New York, New York.
7. That the occurrence, which gave rise to the commencement of this action, took place in the County of New York, City and State of New York.
8. That all of the conditions precedent to the commencement of an action against defendant CITY OF NEW YORK, Police Officers DEREK W. JUNG and “JAMES” COOPER, first name fictitious, intended being that of Police Officer have been met in that a Notice of Claim was filed with THE CITY OF NEW, and within 90 days of the accrual of this cause of action; more than thirty (30) days have elapsed since the presentation of the Notice of Claim, and the Claim remains unadjusted by the CITY OF NEW YORK. This action has been commenced within one(1) year and ninety (90) days from the accrual of this cause of action, and the CITY OF NEW YORK has scheduled but adjourned a hearing of the plaintiff ALEXANDER PALMER. Plaintiff remains willing to attend such hearing.
9. That at all the times herein mentioned the defendant EGA HALL HOUSING

DEVELOPMENT FUND CORPORATION, hereinafter referred to as “EGA HALL,” was and still is an agency of the defendant CITY.

10. That at all the times herein mentioned the defendant EGA HALL HOUSING DEVELOPMENT FUND CORPORATION, hereinafter referred to as “EGA HALL,” was and still is an entity which has a contractual relationship with the defendant CITY to provide housing to certain residents of the City of New York at the location address of 507 West 142nd Street, New York, New York.
11. That at all the times herein mentioned, the defendant CORAZON MANAGEMENT COMPANY, INC., was and still is a domestic corporation duly organized and existing under and by virtue of the laws of the State of New York
12. That at all the times herein mentioned, the defendant CORAZON MANAGEMENT COMPANY, INC., was the owner of the premises located at 507 West 142nd Street, New York, New York New York
13. That at all the times herein mentioned, the defendant CORAZON MANAGEMENT COMPANY, INC., its agents, servants and/or employees operated aforementioned premises.
14. That at all the times herein mentioned, the defendant CORAZON MANAGEMENT COMPANY, INC., its agents, servants and/or employees maintained the aforementioned premises.
15. That at all the times herein mentioned, the defendant CORAZON MANAGEMENT COMPANY, INC., its agents, servants and/or employees managed the aforementioned premises.
16. That at all the times herein mentioned, the defendant CORAZON MANAGEMENT

COMPANY, INC., its agents, servants and/or employees controlled the
aforementioned premises.

17. That at all the times herein mentioned the defendant CORAZON MANAGEMENT
COMPANY INC., had a contractual relationship with the defendant CITY to
provide housing to certain residents of the City of New York at the location address
of 507 West 142nd Street, New York, New York.

18. That at all the times herein mentioned, the defendant CORAZON MANAGEMENT
COMPANY INC., was an agent of the defendant CITY.

19. That at all the times herein mentioned, the defendant CORAZON MANAGEMENT
COMPANY, INC., was under a contract with the owner of the premises located at
507 West 142nd Street, New York, New York New York and/or with the City of
New York or one of its agencies to provide property management services at the
location of 507 West 142nd Street, New York, New York.

20. That at all the times herein mentioned, the defendant MILLY OTERO, was an
employee of Corazon Management Company, Inc. and was performing her duties at
the premises located at 507 West 142nd Street, New York, New York New York.

21. That at all the times herein mentioned, the defendant MILLY OTERO, was an
employee of The City of New York or one of its agencies and was performing her
duties at the premises located at 507 West 142nd Street, New York, New York New
York.

22. That at all the times herein mentioned, the defendant MILLY OTERO, was an
employee of Ega Hall Housing Development Fund Corporation and was performing
her duties at the premises located at 507 West 142nd Street, New York, New York

New York.

23. That at all the times herein mentioned, the defendant MILLY OTERO, was an agent of the defendant CITY.

24. That at all the times herein mentioned, the defendant MILLY OTERO, was an agent of the defendant EGA HALL HOUSING DEVELOPMENT FUND CORPORATION.

25. That at all the times herein mentioned, the defendant MILLY OTERO, was an agent of the defendant CORAZON MANAGEMENT COMPANY, INC.

26. Hereinafter the defendants CITY, NYCPD, EGA HALL HOUSING DEVELOPMENT FUND CORPORATION, CORAZON MANAGEMENT COMPANY, INC., MILLY OTERO, DEREK W. JUNG and "JAMES" COOPER, First name fictitious, intended being that of Police Officer, will be referred to as “the defendants.”

FIRST CAUSE OF ACTION:
(POLICY OF NON-FEASANCE IN THE
PROTECTION OF PLAINTIFF'S CIVIL
RIGHTS)

27. At all times relevant hereto, defendants CITY OF NEW YORK employed the defendants Police Officers DEREK W. JUNG and “JAMES” COOPER, first name fictitious, intended being that of Police Officer, as police officers in the New York City Police Department.

28. Upon information and belief, defendants Police Officers DEREK W. JUNG and “JAMES” COOPER, first name fictitious, intended being that of Police Officer, are

graduates of the Police Academy of the City of New York.

29. At all times relevant hereto, defendant CITY OF NEW YORK had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and patrol levels, the defendant officers in the protection of the Constitutional rights of the Plaintiff under the Fourteenth Amendment to the United States Constitution.
30. In addition, the defendant CITY OF NEW YORK, had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and patrol levels, the defendant officers to conform their conduct to a standard, established by law, for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as the plaintiff herein.
31. Each and all of the acts of the defendants alleged herein were done by the defendants, their agents, servants and/or employees, and each of them, not as individuals, but under color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York, and the County of New York, and under the authority of their office as police officers of said state, city and county.
32. The defendant CITY OF NEW YORK failed to competently and sufficiently hire, train and retain within the defendant officers to conform and conduct themselves to a statute established by law for the protection of citizens, such as

the plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as the plaintiff herein.

33. That on or about 3/24/2020, and prior thereto, the CITY OF NEW YORK, in violation of 42 USC Section 1983 caused plaintiff to be injured and damaged in failing to competently hire, train, and retain police officers, including the defendant officers to conform their conduct to a statute and a standard, established by law, for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as the plaintiff herein.

34. That on or about 3/24/2020, plaintiff ALEXANDER PALMER, was lawfully and properly present in the premises of 507 West 142nd Street, New York, New York.

35. That on or about 3/24/2020, the defendants' Police Officers DEREK W. JUNG and "JAMES" COOPER, first name fictitious, intended being that of Police Officer, were present and on duty in the premises located at 507 West 142nd Street, New York, New York, as part of their regular and official employment as police officers for the defendant CITY OF NEW YORK.

36. That commencing on 3/24/2020, the individual defendant officers, assaulted and battered and wrongfully and falsely arrested, detained, and confined the

plaintiff ALEXANDER PALMER, without probable or just cause, grounds or provocation.

37. Following said assault, battery and arrest, the defendant officers and the CITY OF NEW YORK wrongfully detained and arrested the plaintiff ALEXANDER PALMER, at the location as well as various other locations and falsely imprisoned him.

38. Immediately thereafter, aforementioned defendants, their agents, servants, and/or employees falsely arrested and imprisoned plaintiff and deprived him of his rights and liberties as set forth in the Constitutions of the United States and the State of New York, unreasonably handcuffed him and threatened plaintiff with the use of further physical force.

39. Following said arrest, the defendant officers wrongfully and falsely accused and charged the plaintiff ALEXANDER PALMER, with various crimes and/or violations.

40. The false arrest and imprisonment of the plaintiff ALEXANDER PALMER, was caused by all of the defendants, their agents, servants and/or employees, without warrant, authority of law, or any reasonable cause or belief that he was, in fact, guilty of the crimes with which he was charged.

41. As a result of the aforesaid arrest, plaintiff ALEXANDER PALMER, was forcibly hand-cuffed, detained, transported and treated as a common criminal and incarcerated and imprisoned at various facilities owned, operated,

maintained, and controlled by the defendant CITY OF NEW YORK and thereby deprived of his rights, liberties and freedoms under color of State Law in violation of 42 U.S.C. Section 1983.

42. As a further result of deprivation of plaintiff ALEXANDER PALMER,'s rights to be free from deprivation of rights guaranteed to him by the Fourteenth Amendment to the United States Constitution, he was caused to suffer injury both mentally and physically, severe nervous shock and emotional distress and illness.

43. That on or about 3/24/2020 and continuing, in violation of the rights, privileges and immunities guaranteed to him under the Fourteenth Amendment to the United States Constitution and under color of State Law, the City of New York, defendant officers and each of them acting individually and in concert, in violation of 42 U.S.C. Section 1983, while on duty, detained the plaintiff, even though defendants knew or should have known that the plaintiff was wholly innocent.

44. That all of the actions of the defendants, their agents, servants and/or employees were committed with the intention to cause bodily and mental injury to the plaintiff; to arrest, detain, restrain and imprison the plaintiff without his consent; that the plaintiff was at all times conscious and aware of his arrest, did not consent to the assault, battery and false arrest, and the assault, battery, false arrest and imprisonment were not otherwise privileged.

45. The assault, battery, arrest and imprisonment of the plaintiff were not justified by probable cause or other legal privilege and the defendants, their agents, servants and/or employees acting under color of statute, ordinances, regulations, customs and usages of the State and City of New York and County of New York, and under the authority of their office as police officers for the CITY OF NEW YORK falsely charged the plaintiff with various crimes and/or violations although the defendants, acting in such capacity, knew that such charges were false.
46. That the defendants, their agents, servants and/or employees failed to adequately hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants, their agents, servants and/or employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the reckless lack of cautious regard for the rights of the public, including plaintiff; and that the defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of defendants.
47. That the defendant THE CITY OF NEW YORK, its agents, servants and/or employees failed to adequately hire, retain, train, supervise, discipline or in any other way control the defendant officers in the exercise of their functions; that their failure to enforce the laws of the State and City of New York is and was carried out willfully, wantonly, maliciously and with such reckless disregard for

the consequences as to display a conscious disregard for the dangers of harm and injury to citizens of the State and City of New York, including plaintiff herein.

48. That the said prosecution and criminal charges and hearings instituted and procured by the defendants, their agents, servants and/or employees were unlawful and malicious and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the legal proceedings by the defendants against plaintiff was without probable cause with actual malice and terminated in favor of plaintiff thereby constituting a malicious prosecution.

49. That on or about 3/24/2020, while plaintiff was lawfully and properly in the premises located at 507 West 142nd Street, New York, New York, and at subsequent times thereafter, including but not limited to the aforesaid location, and various other locations, the defendants, their agents, servants and/or employees maliciously assaulted, prosecuted and detained plaintiff ALEXANDER PALMER, without any just grounds therefor.

50. That the plaintiff was and is wholly innocent and was forced by the defendants to submit to court proceedings.

51. The defendants, their agents, servants and/or employees, falsely and maliciously and without probable cause or provocation charged the plaintiff with various crimes/violations.

52. That the said prosecution and criminal charges and hearings were instituted and

procured by the defendants, their agents, servants and/or employees, unlawfully and maliciously and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against plaintiff was without probable cause, with actual malice and was terminated in favor of the plaintiff.

53. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was and based upon the parole hearing, continues to be deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to ridicule and scorn, was injured in his character and reputation, was prevented from attending his usual business and vocation, was injured in his reputation in the community and at his employment and the said plaintiff has been otherwise damaged.

54. That the plaintiff ALEXANDER PALMER, did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, maliciously prosecuted and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Section 1983 and the Constitution of the State of New York.

55. That at all times hereinafter mentioned, the defendant police officers were employed in their respective capacities by the defendant CITY OF NEW YORK and were acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and

regulations of the CITY OF NEW YORK

56. Although defendants should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant CITY OF NEW YORK has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatsoever against their agents, servants and/or employees.

57. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff of the following rights, privileges and immunities secured to her by the Constitutions of the United States and the State of New York: The right of plaintiff to be secure in her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the United States Constitution; the right of plaintiff to be informed of the nature and cause of the accusation against her as secured to him under the Sixth and Fourteenth Amendments to the United States Constitution; and the right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured to him under the Fourteenth Amendment to the United States Constitution.

58. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore and lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and

continues to suffer serious and extreme mental and emotional anguish, distress, physical pain and disabilities, and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and the plaintiff will permanently suffer pain, inconvenience and other effects of injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

59. That on or about 3/24/2020, in violation of the rights, privileges and immunities guaranteed to him under the Fourteenth Amendment to the Constitution of the United States and under the color of State Law, the defendants acted individually and in concert causing the plaintiff to have been injured and damaged in an amount exceeding the jurisdictional limit of the Court, to be determined upon the trial of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(FALSE ARREST AND IMPRISONMENT)

60. Plaintiff repeats, reiterates and realleges each and every allegation set forth in the preceding paragraphs with the same force and effect as if fully set forth herein.

61. That on or about 3/24/2020, in the premises located at 507 West 142nd Street, New York, New York, the defendants, their agents, servants and/or employees

wrongfully and falsely arrested, imprisoned and detained plaintiff ALEXANDER PALMER, without any right or grounds therefor.

62. That on or about 3/24/2020, the defendants wrongfully accused the plaintiff

ALEXANDER PALMER, of various crimes/violations.

63. That said arrest and imprisonment was caused by the defendants, their agents,

servants and/or employees without any warrant or other legal process and without authority of law and without any reasonable cause or belief that the plaintiff,

ALEXANDER PALMER, was in fact guilty of said crimes.

64. On or about 3/24/2020, the defendants and each of them acting individually and in

concert and while on duty, arrested, detained and imprisoned plaintiff even though

the defendants knew or should have known that the plaintiff ALEXANDER

PALMER, was wholly innocent of the criminal charges then and there filed

against him.

65. The defendants, their agents, servants and/or employees, wrongfully and

unlawfully, against the plaintiffs wish, without reasonable or probable cause, and

on the charge of resisting arrest, attempted assault in the third degree, disorderly

conduct and harassment in the second degree, arrested and imprisoned plaintiff

and with full force of arms, they forcibly and violently seized, assaulted and laid

hold of and compelled him to go with said police officers to be detained and

imprisoned at the aforementioned police precinct, and continuing to other places

and times, including, but not limited to, various medical facilities, central booking

and a detention cell in the criminal courts building, and other facilities where the

plaintiff was further detained and imprisoned until the time that he was arraigned and continuing to this day.

66. That at all times relevant hereto, the defendants owed a duty directly to

Plaintiff to conform their conduct to a standard established by law for the protection of the plaintiff.

67. That at all times relevant hereto, the defendants failed to act, safeguard and protect the plaintiff.

68. That at all time relevant hereto, the defendants breached their duty owed directly to the plaintiff which endangered the plaintiff's physical safety.

69. The defendants, their agents, servants and/or employees, acting within the scope of their authority and within the scope of their employment, detained and imprisoned the plaintiff even though the defendants, their agents, servants and/or employees had the opportunity to know or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully, and without a sufficient charge having been made against the plaintiff, directed that the plaintiff be searched and placed in confinement at said locations.

70. That the plaintiff was and is wholly innocent of said criminal charges and did not contribute in any way to the conduct of the defendants, their agents, servants and/or employees and was forced by the defendants to submit to the aforesaid arrest and imprisonment thereto entirely against his will.

71. That as a result of the aforesaid accusations made by the defendants, their agents, servants and/or employees acting under their employment and within the scope of their authority, made falsely, publicly, wickedly and maliciously, the

plaintiff was compelled to make multiple court appearances before a Court.

72. That the defendants, their agents, servants and employees, as set forth on the aforementioned date, time and place, intended to confine the plaintiff; in that the plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.
73. That by reason of the false arrest, imprisonment and detention of the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule, in being so detained, charged and prosecuted with various crimes, and greatly injured in his credit and circumstances and was then and there prevented and hindered from performing and transacting his necessary affairs and business and he was caused to suffer much pain in both mind and body, the loss of employment and the loss of employment opportunities.
74. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

75. By reason of his false arrest and imprisonment, and the violation of the 24-hour arraignment rule, the plaintiff has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

**AS AND FOR A THIRD CAUSE OF ACTION
(MALICIOUS PROSECUTION}**

76. Plaintiff repeats, reiterates and realleges each and every allegation set above with the same force and effect as if fully set forth herein.

77. That on or about 3/24/2020, at approximately 10:30 A.M. of that day, while plaintiff was lawfully and properly in the premises located at 507 West 142nd Street, New York, New York, and at subsequent times thereafter, including various facilities, the defendants, their agents, servants and employees maliciously prosecuted and detained plaintiff ALEXANDER PALMER, without any just right or grounds therefor.

78. That the plaintiff was and is wholly innocent, and was forced by the defendants to submit to court proceedings.

79. That the defendants, their agents, servants and/or employees, falsely and maliciously and without probable cause or provocation charged the plaintiff with various crimes/violations.

80. That the defendants, their agents, servants and/or employees acting in the performance of their employment and within the scope of their authority, testified falsely and withheld vital information before a Judge of the Criminal

Court of the City of New York, County of New York.

81. That the said prosecution and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and/or employees unlawfully and maliciously and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause, with actual malice and was terminated in favor of the plaintiff.
82. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and vocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.
83. As a result of the aforesaid malicious prosecution, the plaintiff, ALEXANDER PALMER, has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

FOURTH CAUSE OF ACTION
(ASSAULT AND BATTERY)

84. Plaintiff repeats, reiterates and realleges each and every allegation set forth in the preceding paragraphs with the same force and effect as if fully set forth herein.
85. On or about 3/24/2020, in the premises located at 507 West 142nd Street, New York, New York, the plaintiff ALEXANDER PALMER, was assaulted and

battered by the defendant police officers and/or others acting in concert with them.

86. The force used in the course of the arrest of plaintiff ALEXANDER PALMER, by the defendant police officers was excessive, unnecessary, unwarranted and violent.

87. As a result of the aforesaid assault and battery, the plaintiff, ALEXANDER PALMER, has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

**AS AND FOR A FIFTH CAUSE OF ACTION
(COMMON LAW NEGLIGENCE)**

88. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs through with the same force and effect as if fully set forth herein.

89. The defendant, CITY OF NEW YORK, was negligent in its operation, management, supervision and control of their Police Department; in not providing adequate training of defendant police officers while at the Police Academy; in their supervision of defendant police officers while assigned to precincts; in failing to provide adequate supervision of defendant police officers during their training at the Police Academy.

90. The defendants DEREK W. JUNG and "JAMES" COOPER, First name fictitious, intended being that of Police Officer, were negligent in failing to use

reasonable care in the detainment and confinement of the plaintiff,

ALEXANDER PALMER, on or about 3/24/2020.

91. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore and lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress, physical pain and disabilities, and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and the plaintiff will permanently suffer pain, inconvenience and other effects of injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

92. By reason of the negligence of the defendants, the plaintiff, ALEXANDER PALMER, has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

**AS AND FOR A SIXTH CAUSE OF ACTION
IN VIOLATION OF INDIVIDUAL'S
RIGHT TO BE FREE FROM**

**UNREASONABLE SEARCHES AND
SEIZURES UNDER THE CONSTITUTION
OF THE STATE OF NEW YORK**

93. Plaintiff repeats, reiterates and realleges each and every allegation set forth in the preceding paragraphs with the same force and effect as if fully set forth herein.

94. On or about 3/24/2020, in the premises located at 507 West 142nd Street, New York, New York, in violation of the rights, privileges and immunities guaranteed to him under the Constitution of the State of New York, the plaintiff ALEXANDER PALMER, was unlawfully searched and seized by the defendant police officers and/or others acting in concert with them, when said defendant police officers and/or others acting in concert with them, and each of them acting individually and in concert, while on duty, detained and searched the person of plaintiff ALEXANDER PALMER, even though the defendants knew or should have known that the plaintiff was wholly innocent.

95. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore and lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress, physical pain and disabilities, and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and the plaintiff will permanently suffer pain, inconvenience and other effects of injuries; plaintiff

incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

96. That by reason of the unlawful search and seizure, the plaintiff, ALEXANDER PALMER, was damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION

97. Plaintiff repeats, reiterates and realleges each and every allegation set forth in the preceding paragraphs with the same force and effect as if fully set forth herein.

98. On or about 3/24/2020, in the premises located at 507 West 142nd Street, New York, New York, defendants EGA HALL HOUSING DEVELOPMENT FUND CORPORATION and CORAZON MANAGEMENT COMPANY, INC., through their agent and employee MILLY OTERO and MILLY OTERO individually, made false statements accusing Plaintiff of crimes and violations which they knew were false in order to entice the other defendants to harass, falsely arrest, search, batter, assault and wrongfully detain, and maliciously prosecute plaintiff. Said defendants intention was to damage and harass plaintiff.

99. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore and lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress, physical pain and disabilities, and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and the plaintiff will permanently suffer pain, inconvenience and other effects of injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

100. That by reason of the unlawful search and seizure, the plaintiff, ALEXANDER PALMER, was damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

WHEREFORE, plaintiff demands judgment against the defendants in the FIRST cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants in the SECOND cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants in the

THIRD cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants in the FOURTH cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants in the FIFTH cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants in the SIXTH cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, in the SEVENTH cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, together with the costs and disbursements of this action.

DATED: New York, New York
May 11, 2021

Yours, etc.

Lee M. Huttner

LEE M. HUTTNER, ESQ.
SUBIN ASSOCIATES, LLP
Attorneys for Plaintiffs
150 Broadway
New York, New York 10038
(212) 285-3800

STATE OF NEW YORK)

) ss.:

COUNTY OF NEW YORK)

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am one of the attorneys for the plaintiff(s) in the within action; I have read the foregoing **SUPPLEMENTAL SUMMONS AND AMENDED COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client(s), is that my client(s) are not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

Dated: New York, New York

May 11, 2021

Lee M. Huttner**LEE M. HUTTNER, ESQ.**